Oregon Department of Human Services

Licensed Child Caring Agency Unannounced Site Visit Report

Licensee: Marion County Juvenile Department (GAP)
Executive Director: Troy Gregg
Program Director: Jose Miranda
Date of Unannounced: June 2, 2021
Licensing Coordinator: Holly Ivey
Other Regulatory or Accrediting Agencies: The Oregon Youth Authority

Purpose: Per OAR 413-215-0101 (1) (b) Children's Care Licensing is required to perform at least one unannounced site visit a year where children in care reside.

Previous Findings	Repeat Findings Further Action Needed	Comments
Medication *413-215-0551*(9) Written record of the disposal of medications is maintained and includes: (d) method. (Sited in the July 2020 Unannounced Inspection) **REPEAT FINDING**-The method of disposal was not found on the medication disposal logs observed. After the inspection, the Program Manager sent the Licensing Coordinator an updated disposal log that met all the required elements per Licensing Rules. It was reported by the Program Manager the form began being utilized on 8/12/20.	**Yes☐ No✓**	June 2, 2021 At the unannounced inspection the Licensing Coordinator observed the medication disposal log being utilized. "method of disposal" was found on the form.
Medication *413-215-0551*(9) (10) Written record of the administration of medication includes: (e) medication dropped or disposed of	**Yes✓ No☐**	June 2, 2021 The Licensing Coordinator observed the medication administration record being utilized. "Medication dropped or disposed" was not found to be in the list of codes for the medication record.

(Sited in the July 2020 Unannounced Inspection) **REPEAT FINDING**-The medication administrative record was missing a field for "medication disposed of or dropped". This needs to be added to the MAR.		
Personnel Files 413-215-0061(1)(a) & (3)(c) Background check completed and documented: (Sited in the July 2020 Unannounced Inspection) ***"***Background checks were not found in personnel files when promotions occurred which is required by BCU Rules."	**Yes☐ No✓**	June 2, 2021 Observed to be in compliance; the Licensing Coordinator reviewed two staff who were recently promoted, the agency had re-run the background checks with the change in positions.
***Consents 413-215-0576(1)*(e) Allow access as defined in 413-215-0091 & 0101:** (Sited in the July 2020 Unannounced Inspection) **"**The above required consent was not found in the youth files reviewed."	**Yes☐ No✓**	June 2, 2021 Observed to be in compliance; the Licensing Coordinator reviewed some youth files and observed allowing access was on the consent form and was being signed by guardians at intake.
Information about Children in Care 413-215-0581(1) Summary sheet contains the following;(a)… gender, date of birth and previous address(b)location of previous and current school: (Sited in the July 2020 Unannounced Inspection) ***"***The above information was missing on the Summary Sheet."	**Yes✓ No☐**	June 2, 2021 Observed to be in compliance; the Licensing Coordinator reviewed the Summary Sheets, and they were observed to be in compliance with the following: gender, date of birth, location of previous and current school. **The following was found to be out of compliance on the Summary Sheets:** **In the youth summaries reviewed by the Licensing Coordinator, the field for "previous address" was blank.**

New Findings from Site Visit	Comments
413-215-0046 Licensing Umbrella Rules: Children and Families Rights *(1) (a) Except as provided in paragraph (B) of this subsection, the child in care's right to uncensored communication with*	**June 3, 2021 (Youth phone interviews)** **While conducting interviews, the DHS Licensing Coordinator received information from the youth regarding phone contact with approved contacts. The following was stated:**

legal guardians, caseworkers, legal representatives, and other persons approved for communication by the legal guardian or as provided in a court order. (A) This right cannot be waived, including voluntarily. Restriction on communication between a child in care and his or her legal guardian may not be a condition of participation in the program. (B) A child-caring agency may place reasonable limits on communication, but only as provided in the child-caring agency's policy. Reasonable limits include, but are not limited to, having set time periods during the day for visitation and phone calls and imposing moderate limits on the duration of calls or visits. However, a limitation is not considered reasonable if it prevents the ability to meaningfully communicate, such as not allowing contact with a child in care's attorney during regular business hours.	• **Youth had opportunities to call approved contacts for 5 minutes two times a week on the lowest level of the program, and for 10 minutes two times a week on higher levels.** • **Youth received daily points for appropriate behavior, 5 points could be used to make10 minute phone calls with approved contacts.** **The program must allow daily phone calls with approved contacts. The duration of the phone calls must increase from 5 minutes, to allow for meaningful communication in compliance with DHS Licensing Rules.**
413-215-0079 Licensing Umbrella Rules: Safety (Adopted 1/1/19) (b) Vehicle requirements. (A) Each vehicle used to transport a child in care must be: (i) Properly registered; (ii) Covered by an insurance policy in full force and effect;	**June 2, 2021** **The following was found to be out of compliance, the DHS Licensing Coordinator did not see the following in the vehicles used to drive youth:** • **Registrations** • **Insurance**

Interview Summary
The program supervisor spoke to the Licensing Coordinator while conducting a walkthrough of the facility. Two youth were interviewed over the phone on May 3, 2021, as youth were not present at the unannounced site inspection. Both of the youth stated they appreciated the staff. The youth stated they had enough food to eat, and that they received snacks daily. One youth stated that if he could change anything it would be the detention food. (The food is cooked and brought down to the program from Marion County Detention in hot boxes for the youth). Both youth stated they felt safe in the program. The only concerns identified in the youth interviews are described above regarding phone contact, and this is sited as Licensing Rule violation.

Observations
The facility was clean and in good repair, no concerns were observed.

Corrective Actions and Timeframes:
Please submit the following to verify compliance.
Within 45 days of receipt of this report **Marion County GAP Program** must submit a letter of verification indicating the agency is in compliance with the specific rules cited above and describing how compliance will be maintained going forward. Along with the letter of verification, the agency must submit any and all specific documentation requested in the body of this report. The letter of verification and any additional requested documents can be emailed directly to **Holly.r.ivey@dhsoha.state.or.us** or sent by regular mail to the following address:

Department of Human Services
Children's Care Licensing Program
Attn: Holly Ivey, Licensing Coordinator
201 High St. SE Suite 500
Salem, OR 97301

Licensing Coordinator's Signature: _____ Date: 6-23-2021

Manager Review: _____ Date: 6-11-2021